



File No.: EXP202212812

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on November 24, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) that he is a neighbor of the respondent and states that this person has a camera/s for video surveillance aimed at his home, without having authorization for this.”

He provides images of the location of the camera(s) and plans of the area affected by the orientation of the camera (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was duly received as evidenced by the acknowledgment of receipt in the file.

THIRD: On December 23, 2022, a written response was received from the respondent consisting of a that the installed system complies with current legality.

FOURTH: On February 24, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FIFTH: On March 9, 2023, a written response was received in which photographs of the cameras installed on the porch of his private home were provided, although no evidence of what is captured by them was submitted.

SIXTH: On May 24, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SEVENTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, he stated the following:

“That the claimant is a violent person with whom he has had various conflicts. That at no time are the cameras aimed at his property, being only aimed at his private patio.

That the doors of his house are open for any verification that the acting authority wishes to carry out, with the cameras having been installed two years ago due to attacks on his property.”

EIGHTH: On June 26, 2023, a was issued in which it was considered that no administrative infringement had been proven as the cameras are aimed at his private area, proposing the filing of the procedure.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated November 24, 2022, through which the following is conveyed:

“(…) that he is a neighbor of the respondent and states that this person has a camera/s for video

surveillance aimed at his home, without having authorization for this.”

He provides images of the location of the camera(s) and plans of the area affected by the orientation of the camera (Annex I).

Second. It is established that the main responsible for the installation is Mr. B.-B.B., with DNI ***NIF.1, who does not deny having installed a camera on his property.

Third. It is not established that the camera captures images of the claimant's property, nor has any evidence been provided to that effect.

Fourth. It is an established fact that the camera is in the respondent's private area, constituting a for which no informative sign is required.

LEGAL GROUNDS

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I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions; and which amends Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials, the procedural deadline established in Article 64.2 "in fine" is applied to this procedure.

"The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon expiration of this period, it shall lapse and, consequently, the proceedings shall be archived."

II

The facts arise from the complaint dated 24/11/22, which states the following:

"...presence of camera(s) directed towards my private property without justified cause (...)"—page no. 1—.

Article 5.1 c) of the GDPR provides as follows: Personal data shall be:

"adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization').

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

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In any case, the cameras must be directed towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause. Furthermore, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps.

The installation of video cameras is subject to an authorization regime, which will be granted, if applicable, prior to a report from a collegiate body presided over by a Magistrate, in which the members dependent on the authorizing Administration shall not be in the majority—Article 3 LO 4/1997, August 4—.

It is worth noting that even in the case of a "simulated" camera, it must be preferably directed towards private space, as it is considered that such devices can affect the privacy of third parties, who may feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or the transit of third parties, outside the cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the individual in such a way that they do not affect the area of third parties who may feel intimidated by them, as it affects their free transit area.

III

On 22/06/23, a written statement of allegations was received from the party being complained against, expressing their willingness for the cameras to be inspected, if applicable, by the State Security Forces and Corps, as well as various acts of vandalism by the complainant towards their property.

According to the allegations made, it is inferred that the cameras do not affect the private area of third parties, recalling that they can serve a deterrent function against furtive acts carried out in bad faith from nearby areas.

Video surveillance constitutes a processing of personal data, as security cameras capture the image of individuals, an image that can serve to identify them; for this reason, it is necessary to apply data protection regulations.

The images that may be obtained are a documentary proof that can be presented to the local Security Forces and Corps or the nearest Investigating Judge to the location of the events.

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"Anyone who causes damage to another's property not covered by other titles of this Code shall be punished with a fine of six to twenty-four months, taking into account the economic condition of the victim and the amount of the damage" – Article 263 CP.

This body has extensively expressed its condemnation of vandalistic acts carried out covertly (e.g., paintings, destruction, breakages, etc.), considering the installation of cameras an appropriate means to prevent malicious damage to another's property, with the images to be made available to the competent authorities.

The objective fact that the claimant can see the installed camera does not imply "data processing," nor has any evidence been presented to support such processing, as the angle of the installed camera is limited to the space of the respondent, who is free to install it in the terms presented to this Agency and following the guidelines established in the Video Surveillance Guide of this body.

IV

The principle of the presumption of innocence prevents the imposition of an administrative infringement when no evidence has been obtained and verified that substantiates the facts that motivate the accusation or the involvement of the alleged infringer in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning system and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the play of evidence and a contradictory procedure in which one's own positions can be defended. In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must translate into an acquittal."

The presumption of innocence governs without exceptions in the sanctioning system and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the play of evidence and a contradictory procedure in which one's own positions can be defended.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no evidentiary activity that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

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In accordance with the above, the mere viewing of the camera from the claimant's property does not constitute an infringement of their privacy or a "processing of their data" outside of legally permitted cases, and the presence of an informative sign is not necessarily required a priori since the only camera is directed towards the area, with a considerable distance existing between both residences, aspects that justify the proposal for the Archiving of this procedure.

Finally, it is noted that such situations should be referred to the State Security Forces and Corps (e.g., the local Civil Guard), as they can guide the alleged victims when installing video surveillance cameras in situations such as those described or intervene in situations of poor neighborly relations.

Therefore, in accordance with the applicable legislation and in accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of this procedure as no administrative infringement has been substantiated in the matter at hand.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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